

M/S Parmarth Industries (Pvt.) Ltd. v. Paschimanchal Vidyut Vitran Nigam Ltd.

High Court of Judicature at Allahabad · Division Bench · 21 March 2017 · Writ-C No. 22286 of 2016 · **Writ dismissed following companion order of even date.**

HEADNOTE

Challenge to an additional-security demand under clause 4.20 of the U.P. Electricity Supply Code, 2005 failed. After an interim restraint on recovery, a later Division Bench dismissed the writ, adopting the order of even date in Writ-C No. 30898 of 2016.

FACTUAL SUMMARY

Parmarth Industries challenged Paschimanchal Vidyut Vitran Nigam Ltd.'s 28 April 2016 demand notice seeking additional security under paragraph 4.20 of the U.P. Electricity Supply Code, 2005. It relied on interim orders in a similar 2009 writ by Supreme Ceramics. On 16 May 2016 the Court listed the petition with Writ Petition (C) No. 51884 of 2009 and restrained the demand until further orders. On 21 March 2017 another Division Bench dismissed the writ, adopting the order of even date in Writ-C No. 30898 of 2016.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.20

additional-security

HOLDING

The writ seeking quashing of the licensee's additional-security demand under clause 4.20 of the U.P. Electricity Supply Code, 2005 was dismissed, the Court adopting the order of even date in Writ-C No. 30898 of 2016. ¶ order dt. 21.3.2017

PRINCIPLE TAGS

additional-security Challenge to an additional-security demand under clause 4.20 of the U.P. Electricity Supply Code, 2005 failed. After an interim restraint on recovery, a later Division Bench dismissed the writ, adopting the order of even date in Writ-C No. 30898 of 2016. ¶ order dt. 21.3.2017

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — INDEPENDENT CONSTRUCTION OF U.P. ELECTRICITY SUPPLY CODE, 2005 CLAUSE 4.20

This order states no reasons of its own; dismissal is by adoption of the even-date order in Writ-C No. 30898 of 2016.

¶ order dt. 21.3.2017

TABLE OF AUTHORITIES

AUTHORITY	PROPOSITION	HOW TREATED	CITED BY	TREATMENT
<i>M/s Supreme Ceramics Limited v. Paschimanchal Vidyut Vitran Nigam Ltd. (Writ Petition No. 51844 of 2009, order dated 7.10.2009)</i>			order dt. 16.5.2016	Referred
<i>Writ-C No. 30898 of 2016 (order of even</i>			order dt. 21.3.2017	Referred

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date)				

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